

**CONSTITUTION OF THE ACADEMIC SENATE OF
SAN JOSE CITY COLLEGE**

Amended by SJCC Faculty Spring 2021

ARTICLE I. NAME AND DEFINITIONS

Section 1. This organization shall be known as the Academic Senate of San Jose City College.

Section 2. The electorate shall be all full-time and adjunct faculty members.

Section 3. A faculty member shall be any certificated employee, full-time or adjunct, of San Jose City College who is employed in an academic position (instructional/non-instructional) that is not designated as a supervisory, management or administrative position. Reassigned time responsibilities will not affect membership.

Section 4. A full-time faculty member shall be any tenured or tenure-track faculty member or any non-tenure-track full-time categorical faculty who is employed in a full-time faculty position provided for by annual or longer term categorical funding.

Section 5. An adjunct faculty member is any faculty member who is not covered in Section 4 above.

Section 6. An academic area refers to an academic area as defined by the Academic Senate and listed in the Academic Senate By-Laws

ARTICLE II. NATURE AND PURPOSE

Section 1. Role and Responsibility

The primary function of the Academic Senate is to represent the faculty and make recommendations on its behalf with respect to academic and professional matters, as per Board Policy 2510.1.-2510.4

Section 2. Academic and Professional Matters

Academic and professional matters include policy development and implementation in the following areas:

1. Curriculum, including establishing prerequisites and placing courses within disciplines
2. Degree and certificate requirements

3. Grading policies
4. Educational program development
5. Standards or policies regarding student preparation and success
6. District and college governance structure, as related to faculty roles
7. Faculty roles and involvement in accreditation processes, including self-study and annual reports
8. Policies for faculty professional development
9. Processes for program review
10. Processes for institutional planning and budget development
11. Other academic professional matters as mutually agreed upon between the Governing Board and the Academic Senate

ARTICLE III. ACADEMIC SENATE REPRESENTATIVES

Section 1. The Academic Senate shall include one faculty member (adjunct or full-time) elected from each academic area except any area having 20 or more full-time faculty, which shall have two members elected. Area representatives shall serve two-year terms unless there are two empty seats in an area having 20 or more fulltime faculty, in which case one representative will be elected for a one-year term and the other for a two-year term. At the end of the one-year term, which serves as a replacement term for former senator, the election will be for a two-year term. All faculty areas with two elected senators must have elections that are staggered annually, i.e., one seat elected in odd years and one seat elected in even years.

Section 2. The Academic Senate shall also include five full-time faculty members elected at-large by full time faculty members, and five adjunct faculty members elected at large by adjunct faculty members. At-large positions shall be elected for two-year terms.

Section 3. The chairperson of the Instructional Policies/Curriculum Committee shall also serve on the Academic Senate as an ex-officio non-voting representative. The position of the Academic Senate President and the IPCC chair shall remain separate positions, not held by the same person.

Section 4. The immediate past-president of the Academic Senate may also serve for one year as an ex-officio, non-voting member of the Senate at the purview of the President.

Section 5. The Academic Senate shall include two student non-voting advisory members.

Section 6. Academic Senate elections shall take place during April.

Section 7. At the time of election of area representatives, a senator shall be a faculty member in the academic area which he/she represents. In the event that a full-time member has an assignment in more than one Academic Senate area, he/she shall be considered to be a member of the area in which the percentage of his/her assignment is greatest.

If, during his/her terms as a senator, a faculty member's assignment is changed with the result that the Academic Senate area in which he/she is considered to be a member is also changed, this senator may continue to represent the area from which he/she was originally elected until the next scheduled election takes place that year.

Section 8. A Senator may be recalled by a two-thirds vote of the electorate of his/her academic area.

ARTICLE IV. ACADEMIC SENATE OFFICERS

Section 1. The officers shall be President, Vice President, Treasurer, and other officers as the Academic Senate deems necessary to conduct its business. Such officers shall be elected by members of the Academic Senate for a term of one year or until the successor is elected. Candidates for all offices shall be current members of the Senate.

- A. Elections for Academic Senate Officers shall be held in May of every academic year, with any elections held solely within the Academic Senate to be conducted on the penultimate meeting of the Spring Semester of the academic year.

Section 2. Duties of Officers

- A. President - The President shall organize and preside at all meetings of the Academic Senate, and shall see that all meetings are held in compliance with applicable open-meeting legislation (e.g., Brown Act) parliamentary procedures and senate policies. These duties shall include the preparation and distribution of meeting agendas, minutes, and reports.

The President shall act as the liaison officer between the Academic Senate and all other constituent groups within the district, including the students, classified staff, college administration, district administration, and the Board of Trustees.

The President or the President's designee shall attend all regularly scheduled Board of Trustee meetings.

The President shall assure that all elections are conducted as specified in the By-Laws.

The President shall bring recommendations relating to academic and professional and academic matters approved by the Academic Senate for presentation to the Board.

The President or, with Academic Senate confirmation, the President's designee, shall serve as a voting delegate at all state academic senate plenary sessions and represent the Academic Senate at all state academic senate area meetings.

The President shall represent the Academic Senate and be responsible for other duties as deemed necessary and appropriate by the Academic Senate.

The President shall register Senate endorsement of certain important documents sent to relevant authorities (e.g. BSI Reports, Accreditation Reports, etc.).

The President shall archive the Senate's historical records.

The President shall advocate for adequate resources for the Senate.

The President shall also serve as a member of the SJECCD Budget Committee, District Council, College Advisory Council (CAC), Accreditation Oversight Team (AOT), the District Board Policy Committee, Resource Allocation Meetings, and attend Docket meetings.

- B. Vice President - The Vice President shall assume the duties of the President in the latter's absence.

In the event that the office of President is vacated, the Vice President shall assume that office and fulfill its duties until the next election.

The Vice President shall assist the President with regular Senate business and special projects.

- C. Treasurer - The Treasurer shall be responsible for having the Academic Senate's financial records maintained, the Senate dues collected and funds disbursed.

The Treasurer shall fulfill the duties of the President in the absence of the President and Vice President.

The Treasurer shall assist the President with regular Senate business and special projects.

- D. The current duly elected officers shall take office at the first regularly scheduled meeting in the fall semester.

ARTICLE V. MEETINGS

Section 1. The Academic Senate shall meet at regular times as specified in the By-Laws. The schedule for the meetings each academic year shall be approved during the spring semester of the previous year.

Section 2. Quorum

- A. Senate meetings shall require a quorum of the membership to conduct business.

- B. A quorum is any number greater than 50% of the elected senators.

Section 3. The Academic Senate may, subject to all the requirements of the Brown Act (California Open Meeting Act – Amended) meet in closed door session.

Section 4. Meetings shall be conducted in accordance with the Brown Act, the Senate Constitution, By-Laws and Ground Rules, and Robert's Rules of Order Revised, in that order.

Section 5. Special Senate Meetings

- A. The Senate shall meet as needed outside the regular schedule when called by the President or when petitioned to do so by a majority of the elected Senators. The petitioners shall have the right to place items on the agenda for that meeting.
- B. The President shall schedule a Senate meeting when petitioned to do so by ten percent of the electorate. The petitioners shall have the right to place items on the agenda for that meeting.

Section 6. Meetings of the General Electorate

- A. The President shall call a general meeting of the electorate, if the President deems it necessary, when petitioned to do so by a majority of the elected senators, or on receipt of a petition signed by at least 15 members of the electorate.
- B. At such a general meeting, at least a majority vote by Senators shall determine whether any given matter will be taken to a full vote of the entire electorate.

ARTICLE VI. COMMITTEES

The Academic Senate shall appoint all faculty representatives to all committees where faculty representation or participation is requested or required with the exception of those appointments properly within the domain of the Faculty Association.

ARTICLE VII. AMENDMENTS TO GOVERNING DOCUMENTS

Section 1. Amendments to this Constitution must be approved by a two-thirds vote of the votes cast in a general election of the faculty electorate.

Section 2. By-laws shall be adopted and amended by a two-thirds vote of the Academic Senate. Changes to the By-Laws shall not be proposed and adopted at the same Senate meeting.

Section 3. The Academic Senate shall adopt or amend Ground Rules for the conduct of its business with a majority vote. Changes to the Ground Rules shall not be proposed and adopted at the same Senate meeting.